

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	P – Strategies to Empower People (STEP) Program
	Section No./Name	P-500-STEP Sanctions/Good Cause
	Document No./Name	P-550-STEP Applying the Sanction
	Effective Date	January 1, 2021

I. STATEMENT OF POLICY

When a work-eligible family is determined to be in non-compliance with STEP requirements and does not have good cause, the appropriate STEP sanction is applied.

II. PROCEDURES

* Once the STEP Coach requests a sanction using the LITE *Request a Sanction* tab in the Referrals module, a task will be generated and routed to the FITAP Case Maintenance Worker for processing.

The FITAP Case Maintenance Worker ** must enter the appropriate STEP sanction code, including the correct Occurrence code and Reason code in LITE.

When a STEP sanction is deemed appropriate for an adult parent/caretaker, it is applied to all adult members. In these instances, if a MUP is included in the FITAP certification, the STEP sanction is not applied to the MUP. However, when a STEP sanction is deemed appropriate for a MUP, it is applied to all adult members and the MUP. The STEP Coach must be careful to request a sanction for the correct members.

An Advance Notice of Adverse Action is required prior to any STEP sanction and allows the client 13 days to comply prior to case closure. If the client complies during this period, the STEP Coach must manually contact the FITAP Case Maintenance Worker with the date of compliance. Otherwise, the STEP referral will ** *** close * automatically at the appropriate time (Refer to [P-610-STEP](#)).

The STEP sanction occurrence codes (1, 2, or 3) are tracked on LITE by member.

A STEP sanction is considered to have occurred once the Advance Notice of Adverse Action ends. The first month of the sanction period is the first month in which the client does not receive FITAP benefits following case closure. After the Advance Notice of Adverse Action expires and the sanction is actually imposed on LITE, the sanction can only be deleted from LITE if it is determined that the client had good cause at the time of non-compliance or if the client wins a subsequent appeal. In these situations, corrective FITAP payments must be made to the client.

If a client who is unwilling to participate voluntarily chooses FITAP case closure prior to a determination of STEP non-compliance, the case closure will not be considered a STEP sanction, unless the request for closure occurs after the Advance Notice of Adverse Action. In these instances, the FITAP Case Maintenance Worker ** must document the case record to indicate that the client has been made aware that FITAP case closure could also affect eligibility for SNAP and Medicaid benefits.

APPLYING THE SANCTION FOR MULTIPLE NON-COMPLIANCES

When a client's FITAP case is pending closure due to a STEP sanction and a subsequent non-compliance occurs, * the STEP Coach must request a sanction for the subsequent non-compliance. If

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the FITAP case is still active in LITE, the FITAP Case Maintenance Worker will enter the STEP sanction and send ** an advance notice of adverse action *** for the second non-compliance. * If the FITAP case has closed, it is not appropriate to request a subsequent non-compliance. **

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

Code of Federal Regulations, Title 45: [Parts 261, 262, 263, and 265](#)

[TANF Final Rule 2008](#)

[Act 58, 2003 Reg. Session.](#)

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